



CHAPTER 60

An Act to amend the law of England and Wales relating to suicide, and for purposes connected therewith.

[3rd August, 1961]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The rule of law whereby it is a crime for a person to commit suicide is hereby abrogated.

Suicide to cease to be a crime.

2.—(1) A person who aids, abets, counsels or procures the suicide of another, or an attempt by another to commit suicide, shall be liable on conviction on indictment to imprisonment for a term not exceeding fourteen years.

Criminal liability for complicity in another's suicide.

(2) If on the trial of an indictment for murder or manslaughter it is proved that the accused aided, abetted, counselled or procured the suicide of the person in question, the jury may find him guilty of that offence.

(3) The enactments mentioned in the first column of the First Schedule to this Act shall have effect subject to the amendments provided for in the second column (which preserve in relation to offences under this section the previous operation of those enactments in relation to murder or manslaughter).

(4) An indictment for an offence under this section shall not be triable by a court of quarter sessions; and (subject to sections thirteen and forty of the Children and Young Persons Act, 1933, as applied by subsection (3) above) no proceedings shall be instituted for an offence under this section except by or with the consent of the Director of Public Prosecutions.

3.—(1) This Act may be cited as the Suicide Act, 1961.

Short title, repeal and extent.

(2) The enactments mentioned in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of the Schedule.

(3) This Act shall extend to England and Wales only, except as regards the amendments made by Part II of the First Schedule and except that the Interments (felo de se) Act, 1882, shall be repealed also for the Channel Islands.

SCHEDULES

FIRST SCHEDULE

ADAPTATION OF ENACTMENTS RELATING TO
MURDER OR MANSLAUGHTER

PART I

AMENDMENTS LIMITED TO ENGLAND AND WALES

*Enactment and subject matter**Amendment*

The Coroners (Amendment) Act,
1926—

Section twenty (Effect on coroners' duties of prosecution for murder, etc.).

The references to murder, manslaughter or infanticide shall apply also to aiding, abetting, counselling or procuring suicide.

The Children and Young Persons Act, 1933—

First Schedule (Offences to which special provisions of the Act apply).

The reference to the murder or manslaughter of a child or young person shall apply also to aiding, abetting, counselling or procuring the suicide of a child or young person.

PART II

AMENDMENTS NOT LIMITED TO ENGLAND AND WALES

The Extradition Act, 1870—

First Schedule (List of extradition crimes).

The list of crimes shall include aiding, abetting, counselling or procuring suicide.

The Visiting Forces Act, 1952—

Section seven (Effect on coroners' duties in England, Wales and Northern Ireland of certain proceedings for homicide).

The definition of "homicide" in subsection (6) shall have effect as if after the references to murder, manslaughter and infanticide there were inserted a reference to aiding, abetting, counselling or procuring suicide.

Paragraph 1 of the Schedule (Offences not triable by courts of England, Wales or Northern Ireland in the cases provided for by section three of the Act).

In sub-paragraph (a) (which provides that murder and certain other offences are to be comprised in the expression "offences against the person") after the word "assault" there shall be inserted the words "and any offence of aiding, abetting, counselling or procuring suicide or an attempt to commit suicide".

The Army Act, 1955—

Subsections (4) and (5) of section seventy (Exclusion of court-martial jurisdiction over certain offences committed in the United Kingdom).

At the end of subsection (4) there shall be added the words—

"In this and the following subsection the references to murder shall apply also to aiding, abetting, counselling or procuring suicide."

*Enactment and subject matter**Amendment*

1ST SCH.

The Air Force Act, 1955—

Subsections (4) and (5) of section seventy (Exclusion of court-martial jurisdiction over certain offences committed in the United Kingdom).

At the end of subsection (4) there shall be added the words—

“In this and the following subsection the references to murder shall apply also to aiding, abetting, counselling or procuring suicide.”

The Naval Discipline Act, 1957—

Subsection (2) of section forty-eight (Exclusion of court-martial jurisdiction over certain offences committed in the United Kingdom).

At the end of the subsection there shall be added the words—

“In this subsection the references to murder shall apply also to aiding, abetting, counselling or procuring suicide.”

SECOND SCHEDULE

Section 3.

REPEALS

Session and Chapter	Short Title	Extent of Repeal
33 & 34 Vict. c. 23.	The Forfeiture Act, 1870	In section one, the words “or <i>felo de se</i> ”.
45 & 46 Vict. c. 19.	The Interments (<i>felo de se</i>) Act, 1882.	The whole Act.
15 & 16 Geo. 6. and 1 Eliz. 2. c. 55.	The Magistrates' Courts Act, 1952.	Paragraph 15 of the First Schedule (except as respects proceedings commenced before the commencement of this Act).
5 & 6 Eliz. 2. c. 11.	The Homicide Act, 1957	In section four, in subsection (1) and in subsection (2), the words “killing himself or”.

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